

HOUSE BILL 2373

By Doggett

AN ACT to amend Tennessee Code Annotated, Title 38,  
Chapter 8, Part 1 and Title 41, relative to pay  
supplements for local correctional officers.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 41, Chapter 7, is amended by adding  
the following new section:

(a)

(1) A local unit of government that requires all full-time certified local  
correctional officers to complete an in-service training course each calendar year  
is entitled to receive from the institute a pay supplement of eight hundred dollars  
(\$800) for each officer each year, to be paid to each officer, in addition to the  
officer's regular salary, if the training course is:

(A) Provided or approved by the institute;

(B) Appropriate to the officer's rank and responsibility and the size  
and location of the officer's department; and

(C) At least forty (40) hours in duration.

(2) Certified local correctional officers are eligible for the pay supplement  
upon successful completion of forty (40) hours of in-service training.

(3) A local correctional officer who has not completed eight (8) months of  
full-time service during the calendar year is not eligible to receive the salary  
supplement, except in the case of the death of the officer, retirement, or medical  
disability. Upon submission of proper documentation by an officer, the institute

shall include time spent in active military service when calculating the required eight (8) months of full-time service.

(4) Notwithstanding another law to the contrary, a local correctional officer who served or serves on active duty in the armed forces of the United States during a period of armed conflict prescribed by presidential proclamation or federal law must receive the cash salary supplement provided pursuant to this section, if such service prevented or prevents such local correctional officer from attending the in-service training program authorized pursuant to this section.

(5) If a local correctional officer does not complete the required in-service training program due to the death of the officer while in the line of duty, then the officer's designated beneficiary must receive the cash salary supplement provided pursuant to this section despite the failure of the officer to complete the required in-service training.

(b) The institute funds made available under subsection (a) to local units of government must be received, held, and expended in accordance with subsections (a)-(c), including the rules promulgated by the institute, and the following specific restrictions:

(1) Funds provided must be used only as a cash salary supplement to local correctional officers;

(2) Funds provided must not be used to supplant existing salaries or as substitutes for normal salary increases periodically owed to local correctional officers;

(3) The training pay supplement is a bonus for the successful completion of training and is not considered part of the local correctional officer's salary for a subsequent years' determination of supplemental pay or for retirement purposes;

(4) Except in the case of retirement or medical disability, a local correctional officer who terminates employment is not eligible to receive the training supplement regardless of completing the required training; and

(5) Local correctional officers certified with the Tennessee peace officer standards and training commission and the institute are not eligible for both training supplements. Employees designated as support or non-facility support, as defined by the minimum standards of the institute, are not eligible for the training supplement.

(c) Funds must not be expended under this section unless the funds are specifically appropriated by the board for the purposes set forth in subsections (a) and (b).

(d) As used in this section, "local correctional officer" means a jail administrator, jailer, deputy sheriff, guard, or correctional officer employed by a local governmental entity, solely in a correctional capacity, and certified as a correctional officer with the institute.

(e) A county may collaborate with and utilize the board for purposes of carrying out this section.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.